

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
FERNANDO LASALLE,

Plaintiff,

SUMMONS

-against-

Index No.:

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
DEPARTMENT OF CORRECTIONS, POLICE
OFFICER LOUIS ORTIZ, BADGE #12587, 46TH
PCT., INDIVIDUALLY, AND AS A POLICE
OFFICER, POLICE OFFICER CLAUDE STATEN,
BADGE #5269, 46TH PCT., INDIVIDUALLY, AND
AS A POLICE OFFICER, POLICE OFFICER
ANGEL BALANAVOV, BADGE #3452, 40TH PCT.,
INDIVIDUALLY, AND AS A POLICE OFFICER,
POLICE OFFICER JUSTIN SAMPATH, BADGE
#1857, 46TH PCT., INDIVIDUALLY, AND AS A
POLICE OFFICER, POLICE OFFICER AMY E.
POLANCO, BADGE #2524, 46TH PCT.,
INDIVIDUALLY AND AS A POLICE OFFICER,
LT. NEILRODIC DEY, 46TH PCT., INDIVIDUALLY,
AND AS A POLICE OFFICER, POLICE OFFICER
LAWRENCE DUNLAY, BADGE #5380, 46TH PCT.,
INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICER TIAGO GOMES, BADGE
#15111, 40TH PCT., INDIVIDUALLY, AND AS A
POLICE OFFICER, AND POLICE OFFICERS
"JOHN AND JANE DOES #1-#5, IDENTITIES
PRESENTLY UNKNOWN.

Plaintiff designates Bronx County
as the place of trial. The place of
venue is Bronx County is where
the causes of action arose.

Defendants.

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To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service, (30) days after the service is complete, if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or

answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 1st day of November, 2022



Jeffrey L. Rusein, Esq.,
Attorney for Plaintiff
330 West 38th Street Suite 302
New York, New York 10018
(212) 265-1350

Defendants address:

City of New York
New York City Dep't of Corrections
c/o Office of the Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

New York City Police Dep't
1 Police Plaza
New York, NY 10007

New York City Dep't of Corrections
7520 Astoria Blvd Suite 305
East Elmhurst, NY 11370

P.O. Louis Ortiz, shield # 12587
P.O. Claude Staten shield #5269
P.O. Amy Polanco shield #2524
P.O. Justin Sampath shield #1857
Lt. Neilrodic Dey
P.O. Lawrence Dunlay shield # 5380
c/o 46th Pct.
2120 Ryer Avenue
Bronx, NY 10457

P.O. Angel Balanavov shield # 3452
P.O. Tiago Gomes shield # 15111
c/o/ 40th Pct.
257 Alexander Avenue
Bronx, NY 10454

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

FERNANDO LASALLE,

Plaintiff,

VERIFIED COMPLAINT

-against-

Index No.:

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
DEPARTMENT OF CORRECTIONS, POLICE
OFFICER LOUIS ORTIZ, BADGE #12587, 46TH
PCT., INDIVIDUALLY, AND AS A POLICE
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INDIVIDUALLY AND AS A POLICE OFFICER,
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#15111, 40TH PCT., INDIVIDUALLY, AND AS A
POLICE OFFICER, AND POLICE OFFICERS
"JOHN AND JANE DOES #1-#5, IDENTITIES
PRESENTLY UNKNOWN.

Defendants.

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The plaintiff, Fernando LaSalle, by his attorney, The Law Office of Jeffrey L. Emdin, complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief, that at all times hereinafter mentioned, the defendant, The City of New York, hereinafter referred to as "City", was, and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.

2. Upon information and belief, at all times hereinafter mentioned, the defendant, the City of New York, i.e. "City", its agents, servants and/or employees operated, maintained and

controlled the New York City Police Department, hereinafter referred to as "NYPD", including all the police officers therein.

3. Upon information and belief, at all times hereinafter mentioned, the defendant, the City of New York, its agents, servants and employees owned, operated, maintained and/or controlled the New York City Department of Corrections, hereinafter referred to as "DOC", including the facility known as Rikers Correctional Center or "Rikers Island", including its agents, servants and/or employees, including all correction officers and staff therein.

4. Upon information and belief, at all times hereinafter mentioned and on the 5th day of September, 2021, Police Officer Luis Ortiz, hereinafter referred to as "Ortiz" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 46th Pct., and at all relevant times set forth below acted in the capacity of a police officer.

5. Upon information and belief, at all times hereinafter mentioned and on the 5th day of September, 2021, Ortiz was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect. Upon information and belief, his badge # is 12587.

6. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of September, 2021, Police Officer Claude Staten, hereinafter referred to as "Staten" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 46th Pct., and at all relevant times set forth below, acted in the capacity of a police officer. Upon information and belief his shield number is 5269.

7. Upon information and belief, at all times hereinafter mentioned and on the 5th day of September, 2021, Staten was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or servant, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.

8. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of September, 2021, Police Officer Angel Balanavov, hereinafter referred to as "Balanavov" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 40th Pct., and at all relevant times set forth below, acted in the capacity of a police officer. Upon information and belief his shield number is 3452.

9. Upon information and belief, at all times hereinafter mentioned and on the 5th day

of September, 2021, Balanavov was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or servant, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.

10. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of September, 2021, Police Officer Justin Sampath, hereinafter referred to as "Sampath" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 46th Pct., and at all relevant times set forth below, acted in the capacity of a police officer. Upon information and belief his shield number is 7857.

11. Upon information and belief, at all times hereinafter mentioned and on the 5th day of September, 2021, Sampath was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or servant, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.

12. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of September, 2021, Police Officer Amy E. Polanco, hereinafter referred to as "Polanco" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 46th Pct., and at all relevant times set forth below, acted in the capacity of a police officer. Upon information and belief her shield number is 2524.

13. Upon information and belief, at all times hereinafter mentioned and on the 5th day of September, 2021, Polanco was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or servant, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.

14. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of September, 2021, Lt. Neilrodric Dey, hereinafter referred to as "Dey", and at all times acted in the capacity of a commanding officer ranked Lieutenant in the 46th Pct. Upon information and belief on September 5, 2021, Dey was acting in a supervisory capacity of all officers under his command at the time of the incident and assigned to the 46th Pct.

15. Upon information and belief, at all times hereinafter mentioned and on the 5th day of September, 2021, Dey was acting within the scope of his employment as a police officer and under the direction of the "NYPD and City" as their agent, servant and/or servant, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.

16. Upon information and belief, at all times hereinafter mentioned, and on the 5th day

of September, 2021, Police Officer Lawrence Dunlay, hereinafter referred to as “Dunlay” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 46th Pct., and at all relevant times set forth below, acted in the capacity of a police officer. Upon information and belief his shield number is 5380.

17. Upon information and belief, at all times hereinafter mentioned and on the 5th day of September, 2021, Dunlay was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or servant, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.

18. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of September, 2021, Police Officer Tiago Gomes, hereinafter referred to as “Gomes” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 40th Pct., and at all relevant times set forth below, acted in the capacity of a police officer. Upon information and belief his shield number is 15111.

19. Upon information and belief, at all times hereinafter mentioned and on the 5th day of September, 2021, Gomes was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or servant, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.

20. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of September, 2021, Police Officers “John and Jane Does #1-#5, collectively referred to as the “Does”, were employed as police officers with the NYPD, and acted as their agent servant and employee(s). They are being sued in a fictitious capacity as their identities are presently unknown.

21. Upon information and belief, at all times hereinafter mentioned and on the 5th day of September, 2021, the “Does” were acting within the scope of their employment as police officers and under the direction of the “City” as their agent, servant and/or servant, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.

22. On the 5th day of September 2021, plaintiff, Fernando LaSalle, hereinafter referred to as “LaSalle” and/or “plaintiff” was a resident of the State of New York, County of the Bronx.

23. On September 5, 2021, at approximately 6:30 a.m. the plaintiff was lawfully present on Ryer Avenue, Bronx County, in the vicinity of the 46th Pct., hereinafter referred to as the “location”.

24. Upon information and belief, one or more of the above-named officers were present

at the location on said date, and at the aforementioned time.

25. At that time and place the plaintiff possessed a can of paper confetti, and was walking down Ryer Avenue.

26. Upon information and belief Officer(s) directed the plaintiff to turn back and cross the block. When the plaintiff attempted to continue down the block he was forcefully grabbed by one or more officers.

27. One of the officers accused the plaintiff of being a protester.

28. Several of the officers grabbed and punched the plaintiff and forcibly brought him to the ground.

29. Numerous officers were on top of the plaintiff putting their weight, knees, forearms and bodies on plaintiff's torso causing the plaintiff great pain.

30. The plaintiff's arms were violently jerked backwards and he was cuffed extremely tight with two sets of handcuffs by one or more of said officers.

31. The officers jerked the plaintiff into the air causing the plaintiff to lose his balance.

32. One of the officers punched the plaintiff in the head, grabbed his hair and pulled it.

33. The officers proceeded to bend LaSalle's body in half, strike him and drag his head against a car.

34. Although there were numerous police officers present and on duty, not one of them intervened to stop this excessive use of force.

35. The plaintiff was lifted off the ground and carried towards the precinct in the air.

36. One of the officers could be heard saying something to the effect of "you want to whip his ass".

37. The officers rammed LaSalle's head into the wooden door of the precinct.

38. The officers purposely dropped plaintiff to the ground.

39. The plaintiff was brought before the desk officer inside the 46th pct. The officers kicked/kneed the plaintiff in his stomach and body inside the precinct.

40. The plaintiff was repeatedly called a "bitch" and other derogatory names, by the officers.

41. The plaintiff was placed in a holding cell bleeding, battered and bruised, while in handcuffs and shackles.

42. Upon information and belief, "Ortiz" is listed as the plaintiff's arresting officer.

43. Upon information and belief, Ortiz filled out the arrest paperwork, including the complaint and arrest report of LaSalle.

44. Upon information and belief Dey was Ortiz's supervisor and reviewed the paperwork and signed off on it, approving the arrest and the reports.

45. Upon information and belief said police report falsely accused LaSalle of striking "Sampath" in the head with a closed fist.

46. Sampath is listed as an assisting officer in LaSalle's arrest.

47. Ortiz signed a criminal court complaint falsely charging the plaintiff with violating New York State penal laws of assault in the second degree, menacing, assault in the third degree, criminal possession of a weapon, resisting arrest, obstruction of governmental administration, disorderly conduct, and harassment in the second degree.

48. Part of the criminal court complaint contained false statements provided to Ortiz by defendants Staten and Sampath.

49. As a result of the false charges, false statements and false allegations, LaSalle's bail was set at \$75,000.00, which he could not make, and he was sent to Rikers Island.

50. The condition inside Rikers Island, including at the Otis Batum Correction Center "OBCC" where LaSalle was housed, were deplorable. LaSalle was injured but did not receive any medical attention. LaSalle went 24 hours without food or bed and thereafter did not get fed until 8:00 p.m. daily.

51. LaSalle spent six days inside "OBCC" before he was released.

52. All criminal charges are pending causing the plaintiff to make repeated court appearances.

53. That notice of the plaintiff's claim and notice of intention to sue for damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were timely and duly served upon the comptroller of the defendant "City".

54. That a 50(h) hearing of the plaintiff was held. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

55. That this action is commenced within one year and 90 days after the cause of action arose.

56. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the

operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF ACTION
FOR FALSE IMPRISONMENT AGAINST ALL DEFENDANTS

57. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "56" with the same force and effect as if more fully and at length set forth herein.

58. That beginning on or about the 5th day of September, 2021, at or about approximately 6:30 a.m., at or near the "location" until the plaintiff's release from custody on or about September 12, 2021, the defendants, their agents, servants and/or employees detained and imprisoned the plaintiff based on false charges, false statements and without any just cause or grounds.

59. That Plaintiff's imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process, and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff was guilty of any crimes for which he was charged.

60. LaSalle was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

61. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; the plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.

62. That all said conduct was committed by the defendants within the scope of their employment with the City of New York and/or the New York City Police Department.

63. That by reason of the aforesaid false imprisonment and detention, LaSalle was subjected to great indignity, humiliation, pain, suffering and loss of freedom and the said plaintiff has been otherwise damaged.

64. That by reason of the aforesaid, LaSalle has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF ACTION
FOR FALSE ARREST AGAINST THE NAMED DEFENDANTS

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "64" with the same force and effect as if more fully and at length set forth herein.

66. That beginning on or about the 5th day of September, 2021, at or about approximately 6:30 a.m. at the "location", the plaintiff, was seized, handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or grounds, and held against his will under full force of arms.

67. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, when the defendants lacked cause to believe that LaSalle committed, or was about to commit a crime or was guilty of any crimes.

68. Plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

69. That the defendants, their agents servants and/or employees, as set forth above, intended to arrest LaSalle; that the plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

70. That all said conduct was committed by the defendant officers was within the scope of their employment with the City of New York and/or the New York City Police Department.

71. That by reason of the aforesaid false arrest, the plaintiff, LaSalle was subjected to great indignity, humiliation, stress and loss of freedom and the said plaintiff has been otherwise damaged.

72. That by reason of the aforesaid, LaSalle has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF ACTION
FOR ASSAULT AND BATTERY AGAINST THE DEFENDANTS

73. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "72" with the same force and affect as if more fully and at length set forth herein.

74. On September 5, 2021 at the "location" LaSalle was seized, punched, thrown to the ground, grabbed, held, kneed, handcuffed, had his arms violently pulled back and upward, threatened and physically touched by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including defendant "officers".

75. The officers hit the plaintiff's head against a car, carried him in a horizontal position, threatened him, used his head as a battering ram, dropped him and then kneed him inside the 46th Pct.

76. The plaintiff was shackled, fingerprinted, touched and threatened by the defendants.

77. That all said contact was committed without the plaintiff's permission or consent.

78. That all said contact was unlawful and without privilege.

79. That the use of force was without justification.

80. That all contact committed by defendants through their agents, servants, and/or employees, including defendant officers, was offensive to LaSalle and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical injury and trauma.

81. That all said conduct was committed by the officers was within the scope of their employment with the City of New York and/or the New York City Police Department.

82. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff.

83. That by reason of the aforesaid, plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR EXCESSIVE USE OF FORCE

84. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "83" with the same force and affect as if more fully and at length set forth herein.

85. That all the aforementioned contact committed by the officers was committed without LaSalle's permission or consent.

86. That all said contact was unlawful and without privilege.

87. That the use of force was without justification.

88. That the use of force was excessive and beyond the means necessary to effectuate LaSalle's arrest and/or control his person.

89. At no time did any of the officers present intervene, stop, mitigate or prevent the excessive use of force from occurring, although they were present and had the means to do so.

90. That all contact committed by defendants through their agents, servants, and/or employees, including defendants "officers", was offensive to the plaintiff and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury.

91. That the above acts committed by the defendants constituted an assault and/or battery through the use of excessive force of LaSalle.

92. That by reason of the aforesaid, plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR NEGLIGENCE AGAINST THE DEFENDANTS

93. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "92" with the same force and affect as if more fully and at length set forth herein.

94. That the defendant, "City" was careless and/or negligent in hiring, retaining, training, assigning, failing to retrain, in monitoring, supervising, investigating, disciplining and/or promoting as and for its employees, defendant officers.

95. The City had notice prior to September 5, 2021 that some of the named "officers" had a history of similar police complaints involving use of force, use of excessive force, failure to

intervene or mitigate misconduct, falsifying or submitting incomplete reports, abusive conduct, threats, discourtesy, and/or offensive language and had been named as defendants in several lawsuits alleging similar misconduct. The defendants were aware that officers lacked the experience, deportment and ability to be employed by the defendants in the capacity in which they were utilized, i.e. as police officers; in that the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "City" failed to investigate the above named employee's backgrounds; in that the City failed to properly train, supervise and monitor the 'officers; and in that that the defendant City was negligent in disciplining, retraining and retaining the named defendant officers;' and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

96. That upon information and belief the City by and through its agents had received numerous civilian complaints and/or lawsuits, against one or more of the defendant "officers", prior to the stop, seizure, search, discourtesy, false arrest, malicious prosecution, assault and battery of LaSalle on September 5, 2021.

97. That the City failed to properly retrain said officers, negligently continued to employ said officers, , negligently assigned, retained, and promoted "officers" despite evidence of their police misconduct and continued to assign said "officers" to act in an enforcement/arrest capacity, without proper supervision, training and discipline.

98. That the "officers" while acting within the scope of his/her employment, were negligent in that each failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that each was negligent, careless and reckless in the manner in which they investigated and/or performed his police duties; in that they failed to intervene or mitigate police misconduct; in that the police department permitted or condoned the false arrest, and/or false documentation submitted by these and other officers; in that they failed to secure prompt and necessary medical attention; in that they permitted the use of unnecessary and excessive use of force and in that they failed to timely notify the Bronx County District Attorney's Office of exculpatory information; and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

99. That the aforesaid occurrence, to wit: seizure, arrest, imprisonment assault and battery, excessive use of force, false arrest and imprisonment, malicious prosecution, and the

resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees including defendants "officers" without any negligence on the part of either of the plaintiffs contributing thereto.

100. That by reason of the aforesaid, the plaintiff, LaSalle was arrested, imprisoned, lost his freedom, injured and stressed, and he was thereby damaged.

101. That by reason of the aforesaid, the plaintiff LaSalle has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A SIXTH AND SEVENTH CAUSES OF ACTION:

ALLEGING VIOLATIONS OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTIONS 1983 AND 1988 BY THE CITY AND EACH DEFENDANT
POLICE OFFICER IN HIS INDIVIDUAL CAPACITY
AND AS AGENT OF THE CITY OF NEW YORK, PLAINTIFF ALLEGES:

102. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "101" with the same force and effect as if more fully and at length set forth herein.

103. That at all times hereinbefore and hereinafter mentioned, the defendants Ortiz, Staten, Balanavov, Sampath, Polanco, Dey, Dunlay, Gomes, and Does were employed by the defendant The City of New York and/or The New York City Police Department and each was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

104. That at all times hereinbefore and hereinafter mentioned, all the defendants were acting pursuant to orders and directives from defendant, The City of New York.

105. That during all times hereinbefore and hereinafter mentioned, the defendants Ortiz, Staten, Balanavov, Sampath, Polanco, Dey, Dunlay, Gomes and Does, individually, and/or collectively with others acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and/or 42 U.S.C. Sections 1983 and/or 1988.

106. That at all times hereinbefore and hereinafter mentioned, the named defendant “officers” were employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his/their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

107. That at all times hereinbefore and hereinafter mentioned, the defendant “officers” were acting pursuant to orders and directives from defendant, The City of New York.

108. That the “City” knew of the improper, unconstitutional and/or illegal police practices of the named defendant officers prior to September 5, 2021 and yet continued to employ and promote them without any discipline, supervision and/or retraining.

109. Upon information and belief, this practice of retention of “bad” officers was a practice adopted by the defendant City and/or the NYPD, and/or was treated with deliberate indifference by the City and/or NYPD.

110. In a New York Times article published November 15, 2020 titled A Watchdog Accused Officers of Serious Misconduct: Few were Punished, by Ashley Southall, LaSalle Watkins and Blacki Miglozzi, it reported that of the 6,900 misconduct charges recommended over the highest level of discipline was recommend, the NYPD ignored 71% of the recommendations and routinely downgraded the charges. This included only two of the 28 recommended charges since the current police commissioner Dermot Shea has been in charge of the NYPD.

111. The Times article found after reviewing charges brought against 3,188 officers that the Police Department followed the Review Board’s recommendations less than 20 percent of the time; that fewer than one in five officers received punishment ranging in severity from 1 lost day vacation to 12 months of dismissal probation; that just seven officers were fired (and only after being convicted of a crime in court); and that many officers had multiple findings against them, but continued to be promoted.

112. It is in this atmosphere, which was created, permitted or acted upon with deliberate indifference by the City, which allowed the constitutional violations of LaSalle to occur and permitted the defendant officers to act with impunity.

113. That the unlawful and illegal conduct of defendant officers, including but not limited to : false arrest, false imprisonment, excessive use of force, assault and battery, failing to intervene, mitigate or reports misconduct of officers, conspiracy of silence, malicious prosecution,

providing false statements, retaliation, deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

- i. The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- ii. The right not to be discriminated against based upon the plaintiff's race, creed, sex, or sexual orientation.
- iii. The right to Due Process Law.
- iv. The right to equal protection under the law.
- v. The right not to be subjected to cruel and unusual punishment
- vi. The right to freedom of speech and expression

114. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive force, seizure of plaintiff's person, his false arrest and false imprisonment, assault and battery, falsifying evidence, discrimination and LaSalle's malicious prosecution, and conspiracy to commit the above, the defendants, individually and collectively violated LaSalle's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the officers" and violated 42 U.S.C. §1983 and/or 1988.

115. That by reason of the aforesaid, plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.

116. That by reason of the aforesaid, plaintiff has been damaged and seeks as to each officer and the City of New York, compensatory damages, plus (against "officers"), costs, attorney's fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper on the sixth (against each officer) and seventh (against the city) causes of action.

**AS AND FOR AN EIGHTH CAUSE OF ACTION ALLEGING
VIOLATION OF CONSTITUTIONAL RIGHTS BY THE CITY
AND "DOC UNDER 42 USC 1983 AND 1988"**

117. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "116" with the same force and effect as if more fully and at length set forth herein.

118. On or about September 5, 2021 through September 12, 2021, the defendant City,

owned, operated, controlled, maintained, staffed, supervised and/or chartered the New York City Department of Corrections, including its staff and/or employees and the physical correctional facilities operated within.

119. The defendant City and/or DOC owns, owned, operated, maintained, staffed and controlled the facility known as Rikers Island Correctional Facility, including the Otis Bantum Correctional Center, hereinafter known as "OBCC", at all relevant times hereinbefore and hereinafter mentioned.

120. On or about September 5, 2021 the plaintiff was placed in the custody of the defendants City and/or DOC.

121. On or about September 5 or September 6, 2021 the plaintiff was assigned to the jail at the OBCC.

122. On or about September 5, 2021 the City and DOC knew, were aware of, or were deliberately indifferent to the conditions at Rikers, which included understaffing, resulting in large gaps between feeding, providing inmates with food, water, showers, beds, medical care and lack of supervision of inmates, including urine and feces on the floors and walls, vermin, and creating extremely unsafe conditions.

123. The poor and dangerous conditions at Rikers Island have been reported in the press, news agencies, social media and has been the subject of ongoing litigation.

124. On April 19, 2022, the New York Times published an article by Jonah E. Bromwich and Jan Ransou, titled "Chaos at Rikers Island could Lead to Federal Court Control, U.S. Attorney Says" reported that the long-running and ongoing crisis at Rikers Island, including inhumane conditions for detainees and staff, could lead to the appointment of a receiver.

125. Conditions were so bad at Rikers Island that on September 8, 2021, Gov. Kathy Hochul declared a State of Emergency at Rikers Island. This was not the first time that Rikers Island's conditions required court appointed intervention.

126. A consolidated Federal class action lawsuit was settled in 2015, which imposed guidelines to ensure safer and more humanitarian conditions inside the City jail complex. The settlement called for a federally appointed monitor t supervisor implementation of the plan. Nunez v. City of NY, 11 Civ. 5845.

127. Even after his appointment, the federal monitor, Steven J. Martin, reported that regardless of the changes made, there still remained a prevalent culture of abuse at Riker Island.

128. During the period of time that the plaintiff was a detainee/inmate of the DOC, approximately September 5 – September 12, 2021 Rikers Island physical facility had fallen into a state of disrepair, hallways littered with trash, feces and/or urine, inmates were walking freely among cells, inmates were not fed, supervised, given medical care or showers or exercise. Toilets were non-functioning and inmates often had to sleep on the floor.

129. New York State Senator Jessica Gonzalez Rojas called it a “House of Horrors”, as reported in The Prison Legal News.¹

130. New York City Public Advocate, Jumané Williams, described the buildings as overcrowded and stank from puddles of urine. In his view, the conditions were inhumane, dangerous and illegal.

131. The defendants created, knew of, neglected and/or were deliberately indifferent and allowed the conditions to exist during the period that the plaintiff was committed to their care, custody and supervision within the DOC.

132. At all relevant times herein, the defendants were under a duty to provide plaintiff with humane, safe and sanitary living conditions, including but not limited to regular meals, water, medical care, access to bathing, bed, and housing.

133. The Defendants, City and DOC, did not meet the aforementioned basic requirements with respect to the conditions of Fernando LaSalle’s confinement, causing plaintiff additional pain and suffering, deprivation of sleep and food.

134. That as set forth above, including the defendants’ duty to care, violated 42 USC 1983, and as a direct proximate caused and/or substantial factor in bringing about or contributing to plaintiff’s injuries as outlined above.

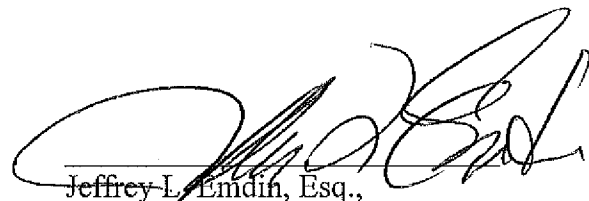
135. That by reason of the aforesaid, plaintiff has been damaged and seeks compensatory damages, plus costs, attorney’s fees, expert fees, as set forth and provide by 42 U.S.C. Sections 1983 and 1988, and punitive damages under the seventh cause of action and such other relief as to the court may seem just and proper on the eighth cause of action.

WHEREFORE, the plaintiff demands judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney’s fees, punitive damages (on the sixth cause of action) and such other and further relief as to the Court seems just and proper on the First through

¹ Living and Dying on Rikers Island: by Kevin Bliss published in Prison Legal News, Feb. 2022.

the Eighth causes of action.

DATED: New York, New York
November 1, 2022



Jeffrey L. Emdin, Esq.,
Law Office of Jeffrey L. Emdin
Attorney for the Plaintiff
330 West 38th Street, Suite 302
New York, New York 10018
(212) 265-1350

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

FERNANDO LASALLE,

Plaintiff,

ATTORNEY VERIFICATION

-against-

Index No.:

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
DEPARTMENT OF CORRECTIONS, POLICE
OFFICER LOUIS ORTIZ, BADGE #12587, 46TH
PCT., INDIVIDUALLY, AND AS A POLICE
OFFICER, POLICE OFFICER CLAUDE STATEN,
BADGE #5269, 46TH PCT., INDIVIDUALLY, AND
AS A POLICE OFFICER, POLICE OFFICER
ANGEL BALANAVOV, BADGE #3452, 40TH PCT.,
INDIVIDUALLY, AND AS A POLICE OFFICER,
POLICE OFFICER JUSTIN SAMPATH, BADGE
#1857, 46TH PCT., INDIVIDUALLY, AND AS A
POLICE OFFICER, POLICE OFFICER AMY E.
POLANCO, BADGE #2524, 46TH PCT.,
INDIVIDUALLY AND AS A POLICE OFFICER,
LT. NEILRODIC DEY, 46TH PCT., INDIVIDUALLY,
AND AS A POLICE OFFICER, POLICE OFFICER
LAWRENCE DUNLAY, BADGE #5380, 46TH PCT.,
INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICER TIAGO GOMES, BADGE
#15111, 40TH PCT., INDIVIDUALLY, AND AS A
POLICE OFFICER, AND POLICE OFFICERS
"JOHN AND JANE DOES #1-#5, IDENTITIES
PRESENTLY UNKNOWN.

Defendants.

-----X

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

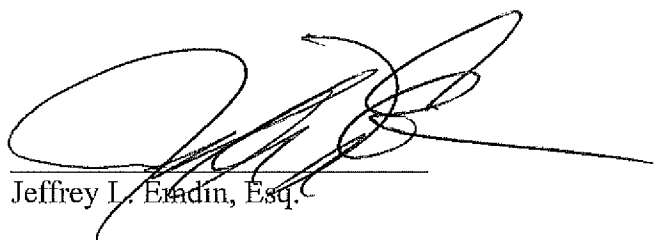
That I am an attorney associated with the Law Office of Jeffrey L. Emdin., the attorney of record for the Plaintiff in the within action; that I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiffs and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
NOVEMBER 1, 2022



Jeffrey L. Eradin, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

FERNANDO LASALLE,

Plaintiff,

PART 130 CERTIFICATION

-against-

Index No.:

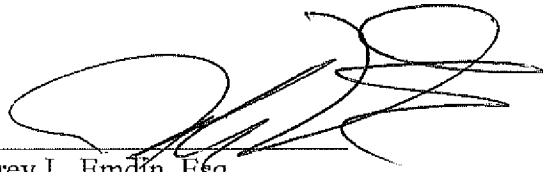
THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
DEPARTMENT OF CORRECTIONS, POLICE
OFFICER LOUIS ORTIZ, BADGE #12587, 46TH
PCT., INDIVIDUALLY, AND AS A POLICE
OFFICER, POLICE OFFICER CLAUDE STATEN,
BADGE #5269, 46TH PCT., INDIVIDUALLY, AND
AS A POLICE OFFICER, POLICE OFFICER
ANGEL BALANAVOV, BADGE #3452, 40TH PCT.,
INDIVIDUALLY, AND AS A POLICE OFFICER,
POLICE OFFICER JUSTIN SAMPATH, BADGE
#1857, 46TH PCT., INDIVIDUALLY, AND AS A
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INDIVIDUALLY AND AS A POLICE OFFICER,
LT. NEILRODIC DEY, 46TH PCT., INDIVIDUALLY,
AND AS A POLICE OFFICER, POLICE OFFICER
LAWRENCE DUNLAY, BADGE #5380, 46TH PCT.,
INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICER TIAGO GOMES, BADGE
#15111, 40TH PCT., INDIVIDUALLY, AND AS A
POLICE OFFICER, AND POLICE OFFICERS
"JOHN AND JANE DOES #1-#5, IDENTITIES
PRESENTLY UNKNOWN.

Defendants.

-----X

CERTIFICATION: I hereby certify that the Verified Complaint that I have served, filed, or submitted to the court in this action are not frivolous as defined in subsection (c) of Section 130-1.1 of the Rules of the Chief Administrator of the Courts.

Dated New York, New York
November 1, 2022


Jeffrey L. Emdin, Esq
Attorney for the Plaintiff

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

FERNANDO LASALLE,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY DEPARTMENT OF CORRECTIONS, POLICE OFFICER LOUIS ORTIZ, BADGE #12587, 46TH PCT., INDIVIDUALLY, AND AS A POLICE OFFICER, POLICE OFFICER CLAUDE STATEN, BADGE #5269, 46TH PCT., INDIVIDUALLY, AND AS A POLICE OFFICER, POLICE OFFICER ANGEL BALANAVOV, BADGE #3452, 40TH PCT., INDIVIDUALLY, AND AS A POLICE OFFICER, POLICE OFFICER JUSTIN SAMPATH, BADGE #1857, 46TH PCT., INDIVIDUALLY, AND AS A POLICE OFFICER, POLICE OFFICER AMY E. POLANCO, BADGE #2524, 46TH PCT., INDIVIDUALLY AND AS A POLICE OFFICER, LT. NEILRODIC DEY, 46TH PCT., INDIVIDUALLY, AND AS A POLICE OFFICER, POLICE OFFICER LAWRENCE DUNLAY, BADGE #5380, 46TH PCT., INDIVIDUALLY AND AS A POLICE OFFICER, POLICE OFFICER TIAGO GOMES, BADGE#15111, 40TH PCT., INDIVIDUALLY, AND AS A POLICE OFFICER, AND POLICE OFFICERS "JOHN AND JANE DOES #1-#5, IDENTITIES PRESENTLY UNKNOWN.

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

LAW OFFICE OF JEFFREY L. EMDIN

Attorney for the Plaintiff

330 W 38th Street, Room 302

New York, New York 10018

(212) 265-1350

TO: City of New York
c/o Office of the
Corporation Counsel
100 Church Street, 4th floor
New York, New York 10007
NYC Dept of Corrections
7570 Astoria Blvd. Suite 350, East
Elmhurst, NY 11370

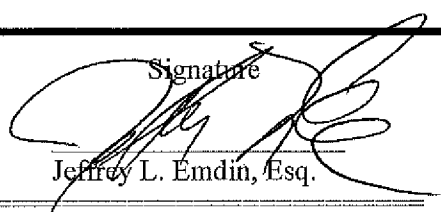
New York City Police Department
One Police Plaza
New York, N.Y. 10007

P.O. Louis Ortiz #12587
P.O. Claude Staten # 5269
P.O. Amy Polanco #2524
Lt. Neildrodic Dey
P.O. Lawrence Dunlay # 5380
c/o 46th pct.
P.O. Angel Balanavov #3452
Po Taigo Gomes, #15111
c/o 40th pct.

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: November 4, 2022

Signature


Jeffrey L. Emdin, Esq.